PRACTICAL LAWS OF PESAH

Misconceptions About Pesah

Practical Laws of Pesah

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Part 1: Cleaning & Searching the House

The Torah Prohibition: Bal Yera'eh u-Val Yimatzei

The Torah (Parashat Bo) states: "Ve-lo yera'eh lecha chametz" — it is forbidden to **own** chametz on Pesach. This constitutes two separate negative prohibitions (lo ta'aseh):

1. **Bal yera'eh** — it shall not be seen (i.e., owned) by you
2. **Bal yimatzei** — it shall not be found (i.e., owned) by you

Critical distinction: The prohibition is on **owning** chametz, not on **seeing** it. If chametz is in your home but doesn't belong to you, there is no Torah prohibition.

Bitul (Nullification) — The Torah-Level Solution

From the Torah's perspective, a person can simply **nullify ownership** of their chametz (bitul) and that is sufficient. Even if the chametz physically remains in the house — as long as you have genuinely abandoned ownership, there is no Torah violation.

This is done by declaring: "Kol chamira de-ika bi-reshuti... le-batil ve-lehevei hefker ke-afra de-ar'a" — all chametz in my possession is nullified and ownerless like the dust of the earth.

The test of sincerity: If someone walks into your home and takes all your chametz, you cannot be upset or object — because it doesn't belong to you anymore.

Why the Chachamim Required More Than Bitul

The Chachamim instituted that bitul alone is not sufficient. You must also **physically dispose** of chametz. Two reasons:

Reason	Explanation
Insincere nullification	If you have hundreds of pounds of chametz, the Chachamim were concerned you won't genuinely abandon ownership. You'll say the words but not mean them.
Temptation	Even if the nullification is sincere, having chametz around you creates a risk — you might forget it's Pesach and eat it.

The Major Question: What Must You Dispose Of?

This is where the misconception arises. When the Chachamim said "dispose of chametz," what exactly did they mean?

Opinion	What You Must Search For	Reasoning
Minority opinion	Everything — including crumbs	Even crumbs could tempt a person
Majority opinion	Only a ke-zayit (substantial piece)	A person won't fail to sincerely nullify crumbs, and won't be tempted by crumbs

A ke-zayit = approximately 17–27 grams. Not crumbs. A small piece of bread, something visible and substantial.

The Halacha (Chacham Ovadia and Many Poskim)

Since this is a **rabbinic** mitzvah (the Torah only requires bitul) and the logic supports the second opinion:

When searching for chametz, you are looking for PIECES of chametz — not crumbs.

This alone should save hours of Pesach preparation.

The One Exception: Places Used With Food on Pesach

Location	What to Search For
Kitchen (where you cook/bake)	Crumbs — because food is prepared here and crumbs may mix into Pesach food
Dining table (where you eat)	Crumbs — same reason, food contact
Everywhere else in the house	Only pieces of chametz (ke-zayit or more)

Why crumbs matter in the kitchen/table: Not because of the prohibition of owning chametz (which only applies to a ke-zayit), but because of the prohibition of **eating** chametz — crumbs near food preparation could get mixed into your Pesach food.

Where Do You Need to Check?

General rule (Shulchan Aruch): You only need to check places where chametz is brought in during the year.

Place	Need to Check?	Notes
Kitchen	✅ Yes — thoroughly (crumbs too)	Food preparation area
Dining room	✅ Yes — thoroughly (crumbs too)	Eating area
Bedrooms where you eat	✅ Yes — pieces only	Only if food is brought in during the year
Bedrooms where you never eat	❌ No	No chametz brought in = no need to check
Bathroom cupboards	❌ No	Not a place where food is brought
Shed	❌ No (usually)	Unless you bring food there
Garden	✅ Yes — quick check for pieces	If you eat/picnic there. Takes 5 minutes.
Car	✅ Yes	Commonly a place where people eat
Wine storeroom	❌ No	Shulchan Aruch's own example

The Exception: Young Children in the House

If there are toddlers/young children (below the age of responsibility):

- You **must** check everywhere — bathrooms, toilets, every room — because the Gemara says children are like mice: they carry chametz everywhere.
- **However:** Only check where the children can reach. If you have a high cupboard they can't access and you never put food there — no need to check it.

Specific Common Questions

Pockets: Do you need to check your pockets?

- If you **never** put unwrapped food in your pockets → No need to check.
- If you **regularly** put food in your pockets → Yes, check for crumbs (because you might put food in the pocket on Pesach and it'll mix with chametz crumbs).
- Adults generally don't need to. **Children's pockets** — yes, check them.

Books: Do you need to check books for crumbs?

- If the books will **not** be used while eating on Pesach → No need to check. Crumbs in books are nullified.
- If the books **will** be used while eating (e.g., Birkat HaMazon booklets) → Yes, check them. Or better: use different copies for Pesach.

Garden: Do you need to do bedikat chametz in the garden?

- Yes, if you eat/bring food there. Walk around, check for pieces. Takes 5 minutes.

- If the last time anyone ate in the garden was many months ago (e.g., last summer in England), the food would have been consumed by animals or become inedible — no need to check.

Bedikat Chametz — The Night-Time Search

The Chachamim instituted a formal search for chametz on the **night before Pesach**.

Why at night?

- People are busy during the day
- A flame/candle provides focused light for checking behind furniture, in corners, etc.

When to do it:

- Best: from nightfall (~8:45 PM in London area)
- Acceptable: from sunset (~8:00 PM) — since it's a mitzvah de-rabbanan, bein ha-shmashot is fine
- Especially if young children want to participate — can start from sunset

If you missed the night:

When You Remember	What to Do
Next morning (Erev Pesach)	Do bedikat chametz during the day
During Pesach / Chol HaMoed	Still do bedikat chametz — even on the 8th day
After Pesach is over	Still do bedikat chametz — because chametz she-avar alav ha-Pesach is asur be-hana'ah (chametz owned over Pesach is permanently forbidden)

Places already checked: Any room thoroughly cleaned before bedikat chametz night — where no chametz has entered since — does **not** need to be checked again on the night of bedikat chametz.

Bi'ur Chametz — Disposing of Chametz

Tradition	Method
Sephardim (me'ikar ha-din)	Any form of disposal: crush it, throw it in a public bin, pour chemicals on it to make it inedible. Burning is not required.
Ashkenazim (minhag)	Burn the chametz

The Bracha: Al Bi'ur Chametz (Not Bedikat Chametz)

The blessing recited before the search is "al **bi'ur** chametz" (on the disposal of chametz) — not "al bedikat chametz" (on the searching).

Why? Because searching is the beginning of a process that concludes with disposal the next morning. The main purpose of searching is to dispose. The Chachamim made the bracha on the end goal, not the preliminary step.

The Minhag of Placing 10 Pieces

Origin: The Arizal instituted placing specifically 10 pieces of chametz around the house before the search.

The Ra'avad's criticism: "Minhag nashim hu" — a custom of the unlearned. The mitzvah isn't to **find** chametz; it's to **search** and then dispose. If you search and find nothing — you've still fulfilled the mitzvah.

The Chacham Tzvi would mock this practice.

Nevertheless — it is our minhag and we do it. But two critical points:

1. **Don't turn bedikat chametz into a treasure hunt for 10 pieces.** The purpose is to search the house for chametz. Finding the 10 pieces is incidental — not the goal.
2. **Use pieces smaller than a ke-zayit.** If you lose one of the 10 pieces, you don't need to turn the house upside down — because as we learned, you don't need to search for less than a ke-zayit. Just do bitul and you're fine.

Part 2: Hechsherim — What Needs a Pesach Certification?

Two Foundational Principles

Principle 1 — Chametz on Pesach is not nullified (be-mashehu): Unlike regular kashrus where 1-in-60 nullifies a forbidden substance, on Pesach itself even a drop of chametz that falls into food makes the entire food forbidden.

However: This stringency only applies **on Pesach itself**. Before Pesach, regular nullification (1-in-60) works.

The Sephardi position: Chametz that was nullified before Pesach does **not** reawaken on Pesach (ein chozer ve-ne'or). This is a critical distinction from the Ashkenazi position.

Position	Before Pesach nullification	On Pesach itself
Sephardim	Works. Stays nullified even on Pesach.	A drop of chametz prohibits everything.
Ashkenazim	The nullification "reawakens" on Pesach (chozer ve-ne'or).	A drop of chametz prohibits everything.

Principle 2 — Achzukei issura lo machzikinan: We do not assume something went wrong unless we see it go wrong. The Shulchan Aruch gives the example of meat, cheese, and fish set aside for Pesach — even if no one was careful to guard them from chametz — the food is permitted, because we don't assume chametz fell in.

What Does NOT Need a Pesach Hechsher (For Sephardim)

Based on these two principles, **anything with pure, natural ingredients bought before Pesach does not need a Pesach hechsher:**

Item	Hechsher Needed?	Notes
Water	❌ No	
Salt	❌ No	
Sugar	❌ No	
Pure tea (no additives)	❌ No	
Pure coffee / instant coffee	❌ No	Non-flavored
Pure oil	❌ No	
100% fruit juice	❌ No	Must be pure, no additives
Dried fruit	❌ No	Chacham Ovadia explicitly permits
Pure spices (cinnamon, saffron strands, etc.)	❌ No	100% pure

Why buy before Pesach? If bought on Pesach (e.g., Chol HaMoed), there's a possibility the product was manufactured on Pesach itself — and nullification doesn't work on Pesach. Buying before Pesach ensures any incidental chametz contact was nullified before Pesach.

After Pesach: Products bought after Pesach are also fine — because the moment Pesach ends, nullification kicks in retroactively. The nullification does not "reawaken" the following Pesach.

Why do these items have Pesach hechsherim in stores? Because the kashrus market is primarily run according to Ashkenazi standards, where chozer ve-ne'or applies. For Ashkenazim, these items do need certification.

The balance: Chacham Ovadia emphasizes — if you can afford to be strict, wonderful. But recognize it is a **chumra**, not a halachic requirement for Sephardim. And being stringent in one area often leads to leniency elsewhere (chumra ati lidei kula).

Tablets, Medications & Vitamins

The Rambam's principle: Anything with no satisfaction to the palate (she-ein bo hana'at ha-cheich) does not fall under the prohibition of chametz.

The standard: Food is forbidden on Pesach only if it is ra'ui la-achilat kelev (fit for a dog to consume). Anything inedible is not prohibited.

Item	Hechsher Needed?	Reasoning
Regular tablets/pills (no flavor)	❌ No	No taste, not ra'ui la-achilat kelev. Even if it contains chametz — you're not giving importance to the chametz element (no achshavei).
Medications for illness (even mild)	❌ No	Even if it contains chametz. A person who is unwell may take any medication.
Very slight headache (Chacham Ovadia)	⚠️ Preferably avoid if you know it has chametz	But plenty to rely on if you take it
Vitamins (Rav Moshe Feinstein)	❌ No	No taste → permitted even though taken for health, not illness
Flavored medications / syrups (e.g., Calpol for children)	✅ Yes — check ingredients	Flavor is intentionally added → hana'ah la-cheich → needs checking

Cosmetics & Toothpaste

Item	Hechsher Needed?	Reasoning
Lipstick	❌ No	Not being consumed. Not ra'ui la-achilat kelev. Sichah ke-achilah (anointing = eating) — we don't hold of this.
Creams, perfumes, cosmetics	❌ No	Not ingested, not edible
Toothpaste	⚠️ Some say yes	Has intentional flavor, goes in mouth. Some Poskim recommend a hechsher. Others argue you have no interest in the chametz element. Understandable to be strict here.

Existing cosmetics from during the year: No need to buy new ones. Look at the lipstick — if there's visible chametz on it, put it away. If not, use it (or wipe off one layer).

Part 3: Kitniyot

Kitniyot Is NOT Chametz

Chametz = only the five grains: wheat, barley, spelt, oats, rye. Nothing else can be chametz.

Kitniyot (legumes, rice, beans, corn, etc.) is a **minhag** — a custom that evolved among European Ashkenazim in the 13th century. Reasons given include: grains of wheat were commonly mixed with legumes, leading to confusion.

Chacham Ben Tzion Abba Shaul's observation: People are extremely particular about avoiding even a derivative of kitniyot — yet the food most statistically likely to contain chametz on Pesach is **matzah** itself (timing errors during baking, water contact, going over 18 minutes). A person who eats nothing but matzah all Pesach to avoid kitniyot may actually be increasing their chametz exposure.

Practical Implications

Ashkenazim eating at a Sephardi home:

- An Ashkenazi who doesn't eat kitniyot **may eat** at a Sephardi home where kitniyot is served.
- Food cooked in a pot that had kitniyot 24 hours earlier is **absolutely fine** for Ashkenazim — because kitniyot is not real chametz. The ta'am (absorbed flavor) of kitniyot in the pot is not a problem.

An Ashkenazi woman married to a Sephardi man:

- She may eat kitniyot. She does not need hatarat nedarim according to Chacham Ovadia (though this is a broader discussion).

Summary

Topic	Key Takeaway
Searching the house	Look for **pieces** of chametz (ke-zayit+), not crumbs. Crumbs only matter in kitchen/dining area.
Where to check	Only places where chametz is brought during the year. Not bathrooms, not sheds, not high cupboards.
Children	Check everywhere they can reach — they carry chametz like mice.
Garden, car	Quick check for pieces.
Books, pockets	Only if used with food on Pesach / if you put food in pockets.
Bedikat chametz	Night before Pesach. Already-cleaned rooms don't need rechecking.
Bi'ur chametz	Sephardim: any disposal method. Ashkenazim: burning.
10 pieces	Use small pieces (< ke-zayit). Don't make the search about finding them.
Hechsherim	Pure natural products bought before Pesach: no hechsher needed (Sephardim).
Medications	Tablets without flavor: fine. Flavored syrups: check. Vitamins: fine.
Cosmetics	No hechsher needed. Toothpaste: some recommend checking.
Kitniyot	Not chametz. Ashkenazim can eat at Sephardi homes freely.

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